IN THE UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF VIRGINIA
Alexandria Division

TAMARIS (GIBRALTAR) LIMITED,
Plaintiff,

v.

ALEKSANDR ROGONOV,
and
JOHN DOES 1-8,
Defendants.

Case No. 1:26-cv-3298

COMPLAINT

Tamaris (Gibraltar) Limited operating as Pragmatic Play ("Pragmatic Play" or "Plaintiff"), by counsel, alleges as follows as its Complaint against Defendants Aleksandr Rogonov and John Does 1-8, who are owners, operators, financers, or otherwise acting in concert or participation with the gamblingcounting.com website seeking, *inter alia*, disabling of the website that is being used to redistribute and display unauthorized copies of Pragmatic Play's live casino games and the PRAGMATIC PLAY trademarks without authorization by streaming live data feeds of Pragmatic Play's live casino games.

NATURE OF THE SUIT

1. The explicit purpose of Defendants' website, gamblingcounting.com, is to facilitate and encourage unlawful cheating in online games. Unless enjoined by this Court, Defendants' illicit website is already harming, and will continue to harm, Pragmatic Play and its customers by damaging the goodwill associated with the PRAGMATIC PLAY Marks and the trust in the legitimacy and fairness of Pragmatic Play's games.

2. This is an action for trademark infringement and counterfeiting under the Lanham Act, 15 U.S.C. §§ 1114 and 1116(d)(1), and copyright infringement under the Copyright Act, 17 U.S.C. § 101, *et seq.*, against Defendants.

3. Pragmatic Play's invaluable rights in the distinctive PRAGMATIC PLAY trademarks and Pragmatic Play's copyright-protected works have been deliberately infringed through unauthorized use of the PRAGMATIC PLAY trademarks and copyright-protected games by Defendants' hosting of unauthorized live data feeds of Pragmatic Play's games.

PARTIES

4. Plaintiff Tamaris (Gibraltar) Limited is a Gibraltar limited company with a principal business address of Madison Building, Midtown, Queensway Gibraltar.

5. Defendant Aleksandr Rogonov ("Rogonov") is, or purports to be, an individual who is the registered owner of the gamblingcounting.com domain name. Based on information and belief, Rogonov operates gamblingcounting.com and is responsible for the content displayed at gamblingcounting.com. Based on domain name registration records associated with Aleksandr Rogonov, he uses the email address arogonov@gmail.com and provided the domain registrar a purported address of "Beli Iskr 2 ap 8, Sofia/Sofia/1527."

6. Defendants John Does 1-8 are entities or individuals who operate and/or finance the gamblingcounting.com website and/or are acting in concert and participation with those who operate the gamblingcounting.com website.

7. Plaintiff refers to Aleksandr Rogonov and John Does 1-8 collectively as "Defendants."

JURISDICTION, VENUE, AND JOINDER

8. This is a civil action for trademark counterfeiting and infringement under the Lanham Act, 15 U.S.C. § 1114(1), and for copyright infringement under the Copyright Act, 17 U.S.C. § 101 *et seq.*

9. This Court has original jurisdiction under 15 U.S.C. § 1121(a), 17 U.S.C. § 101, *et seq.*, and 28 U.S.C. §§ 1331 and 1338(a).

10. Pragmatic Play's claims against Defendants for trademark counterfeiting, trademark infringement, and copyright infringement are based on Defendants' misuse of Pragmatic Play's trademarks and copyright-protected works to redistribute and display unauthorized copies of Pragmatic Play's live casino games and the PRAGMATIC PLAY trademarks by hosting unauthorized data feeds of Pragmatic Play's live casino games.

11. This Court has personal jurisdiction over Defendants pursuant to Fed. R. Civ. P. 4(k)(2)(B). Rogonov claims to live in Bulgaria and is not subject to jurisdiction in any state's courts of general jurisdiction. Pragmatic Play's claims arise under federal law and "exercising jurisdiction is consistent with the United States Constitution and laws." *See* Fed. R. Civ. P. 4(k)(2)(B).

12. On information and belief, John Does 1-8 are also not subject to jurisdiction in any state's courts of general jurisdiction, and therefore this Court personal jurisdiction lies over Defendants pursuant to Fed. R. Civ. P. 4(k)(2)(B).

13. While the extent of Defendants' operations within the United States is not clear, exercising jurisdiction over Defendants is consistent with the limits of due process because, at the very least, Defendants have operated the gamblingcounting.com website through extensive use of U.S.-based service providers and instrumentalities including, without limitation, a U.S.-based domain registry, domain registrar, content delivery network (CDN) provider, hosting provider, and email service provider.

14. Venue lies in this District because Defendants are "not resident in the United States" and may be sued in any judicial district. 28 U.S.C. § 1391(c)(3).

15. Venue also lies in this District because "a substantial part of the events or omissions giving rise to the claim occurred, or a substantial part of property that is the subject of the action is situated" in this district. 28 U.S.C. § 1391(b)(2).

16. Joinder of Defendants is proper under Fed. R. Civ. P. 20(a)(2) in that the claims set forth herein arise out of the same series of transactions, and the same questions of law are common to all Defendants. The claims against all Defendants involve the same questions of both fact and law,

including whether the Defendants have engaged in trademark and copyright infringement through the operation of the gamblingcounting.com website.

PLAINTIFF'S RIGHTS

17. Tamaris (Gibraltar) Limited, operating as Pragmatic Play, is the proprietor of Pragmatic Play's intellectual property, which encompasses trademarks, copyrights, and other assets. Pragmatic Play is a leading developer and provider of mobile and desktop casino games for the online gaming industry.

18. Since 2016, Pragmatic Play has actively and continuously offered a wide range of games under the PRAGMATIC PLAY trademark to operators in various jurisdictions.

19. Since receiving its first gaming license in 2016, Pragmatic Play has acquired licenses in numerous regulated markets.

20. Pragmatic Play offers an array of games under the PRAGMATIC PLAY Marks, including online slot games, live casino games, bingo, and virtual sports.

21. Consumers have come to distinguish and recognize the legitimacy of Pragmatic Play's services as a result of the use and widespread promotion of the PRAGMATIC PLAY Marks.

22. To protect both its consumers and its valuable marks, Pragmatic Play has engaged in significant enforcement efforts relating to its intellectual property. Its efforts include defensive domain name registrations, administrative proceedings under the Uniform Domain Name Dispute Resolution Policy, take-down notices, and anti-cybersquatting actions, including litigation in this Court. (Citations omitted.)

23. In addition to its common law trademark rights, Pragmatic Play possesses statutory rights in the PRAGMATIC PLAY Marks by virtue of its ownership of U.S. trademark registrations for both the PRAGMATIC PLAY word mark and composite mark, directed to "Entertainment services, namely, providing games of chance via the Internet," U.S. Reg. Nos. 6848492, 6890979, 7307616, 7330411, and 7773162. Copies of these registrations are attached as Exhibit A.

24. In addition to its trademark rights in the PRAGMATIC PLAY Marks, Pragmatic Play is also the author and owner of the live performances and livestream broadcasts of its games, as well as

all live data feeds, images, graphics, video and sound recordings, and software code associated with its games, which are creative and original expressions entitled to copyright protection ("Pragmatic Play's Works").

DEFENDANTS' WEBSITE DISPLAYS RAMPANT MISUSE OF PRAGMATIC PLAY'S TRADEMARKS AND WORKS

25. This action arises out of Defendants' redistributing and displaying unauthorized copies of Pragmatic Play's live casino games and the Pragmatic Play Marks by hosting unauthorized live data feeds of Pragmatic Play's live casino games. Specifically, the gamblingcounting.com website makes unauthorized use of the PRAGMATIC PLAY Marks and Pragmatic Play's Works by streaming live data feeds of Pragmatic Play's online games without authorization and for an improper purpose.

26. The gamblingcounting.com website engages in unauthorized copying and display of Pragmatic Play's copyright-protected materials including live performances, livestreams, data feeds, images, video and sound recordings, and software code by livestreaming Pragmatic Play's online games without permission.

27. Defendants' live data feeds on the gamblingcounting.com website are not affiliated with Pragmatic Play and use the PRAGMATIC PLAY Marks in a manner likely to confuse consumers regarding whether gamblingcounting.com is providing genuine, unaltered Pragmatic Play games.

28. Upon information and belief, the gamblingcounting.com website is used by players who access the gamblingcounting.com website from around the world including, without limitation, by players within the United States and the District.

29. The gamblingcounting.com website is operated through extensive use of U.S.-based service providers including, without limitation, a U.S.-based domain registry, domain registrar, CDN provider, hosting provider, and email service provider.

30. Defendants' website features a "provider" subpage that uses the Pragmatic Play design mark with the description "Statistics and game tracking from Pragmatic," followed by a description of Pragmatic Play as "a leading online casino software developer known for its diverse range of high-

quality slots, table games, and bingo." *See* Provider, Gambling Counting, https://gamblingcounting.com/provider.

COUNT ONE (TRADEMARK INFRINGEMENT)

31. Pragmatic Play repeats and realleges each and every allegation set forth in the foregoing paragraphs, as though fully set forth herein.

32. Defendants are using the PRAGMATIC PLAY Marks in commerce and have no valid rights in the PRAGMATIC PLAY Marks.

33. Defendants have actual and/or constructive notice, pursuant to Section 22 of the Lanham Act, 15 U.S.C. § 1072, of the existence of Pragmatic Play's superior rights in its PRAGMATIC PLAY Marks by reason of the existence of Pragmatic Play's aforementioned federal trademark registrations.

34. Defendants' use of the PRAGMATIC PLAY Marks is without the permission or authorization of Pragmatic Play.

35. Defendants are using marks that are identical with, or substantially indistinguishable from, the PRAGMATIC PLAY Marks on services covered by the federal registrations for such marks, including, for example, the gamblingcounting.com website that redistributes and/or displays unauthorized copies of Pragmatic Play's live casino games and the Pragmatic Play Marks by hosting unauthorized data feeds of Pragmatic Play's live casino games.

COUNT TWO (TRADEMARK COUNTERFEITING)

36. Pragmatic Play repeats and realleges each and every allegation set forth in the foregoing paragraphs, as though fully set forth herein.

37. Defendants are intentionally and knowingly using counterfeit versions of the PRAGMATIC PLAY Marks in connection with the gamblingcounting.com website that redistributes and/or displays unauthorized copies of Pragmatic Play's live casino games and the Pragmatic Play Marks by hosting unauthorized live data feeds of Pragmatic Play's live casino games.

38. Defendants have used spurious designations that are identical with, or substantially indistinguishable from, the PRAGMATIC PLAY Marks on services covered by the federal

registrations for such marks, including, for example, the gamblingcounting.com website that redistributes and/or displays unauthorized copies of Pragmatic Play's live casino games and the Pragmatic Play Marks by hosting unauthorized live data feeds of Pragmatic Play's live casino games.

COUNT THREE (COPYRIGHT INFRINGEMENT)

39. Pragmatic Play repeats and realleges each and every allegation set forth in the foregoing paragraphs, as though fully set forth herein.

40. Pragmatic Play's Works include, without limitation, live performances of Pragmatic Play games. Pragmatic Play's logos, individual game logos, menu structures, color schemes, graphics, video and sound recordings, associated source code, and other materials created by Pragmatic Play for the display of online games by Pragmatic Play.

41. Pragmatic Play's Works are non-U.S. works that were first published outside of the United States and are exempt from the copyright registration requirements of 17 U.S.C. § 411.

42. At all times relevant hereto, Pragmatic Play has been and is the owner and proprietor of all rights, title, and interest in and to Pragmatic Play's Works.

43. Pragmatic Play's Works contain creative material wholly original to Pragmatic Play and are copyrightable subject matter under the copyright laws of the United States.

PRAYER FOR RELIEF

WHEREFORE, Pragmatic Play respectfully requests of this Court:

A. That judgment be entered in favor of Pragmatic Play on its claims of trademark counterfeiting, trademark infringement, and copyright infringement.

B. That Defendants be required to pay Pragmatic Play statutory damages pursuant to 15 U.S.C. § 1117(c).

C. That, in the alternative, actual damages (trebled with respect to the trademark counterfeiting claim) be awarded against Defendants.

D. That Defendants be required to give an accounting and disgorge all profits earned from the operation of their website containing counterfeit PRAGMATIC PLAY Marks and Pragmatic Play's Works.

E. That the Court permanently enjoin Defendants and their officers, directors, principals, agents, servants, employees, successors and assigns, and all those in active concert or participation with them, jointly and severally, from copying, distributing, altering, displaying, hosting, selling, and/or promoting Pragmatic Play's Works.

F. That the Court order an award of costs and reasonable attorneys' fees, pursuant to 15 U.S.C. § 1117(a), 17 U.S.C. § 505, or as otherwise permitted by law, incurred by Pragmatic Play in connection with this action.

G. That Pragmatic Play be awarded pre-judgment interest and post-judgment interest on the above damages awards.

H. That the Court order an award to Pragmatic Play of such other and further relief as the Court may deem just and proper.

Dated: October 5, 2026

By: Attison L. Barnes, III

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